

National Foundation for Development of Indigenous Nationalities Act, 2002

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Indigenous Nationalities Upliftment National Institution Act, 2058

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Amending Acts

1. Act to Amend Some Nepal Acts to Maintain Gender Equality, 2063 2063.7.17
2. Act to Consolidate the Republic and Amend Some Nepal Laws, 2066 2066.1.07
3. Act to Amend Some Nepal Acts to Make Them Consistent with the Constitution of Nepal, 2075 2075.11.19

Act No. 20 of the Year 2058

Act Made to Provide for the Indigenous Nationalities Upliftment National Institution

Preamble: Whereas, it is desirable to establish and operate the Indigenous Nationalities Upliftment National Institution for the social, economic and cultural development and upliftment of various indigenous nationalities of Nepal and for their equitable participation in the mainstream of national development;

Therefore, Parliament has enacted this Act in the first year of the reign of His Majesty King Gyanendra Bir Bikram Shah Dev. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Indigenous Nationalities Upliftment National Institution Act, 2058".

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act, -

(a) "Indigenous Nationality" means a caste or community as per the Schedule having its own mother tongue and traditional customs, distinct cultural identity, distinct social structure and written or unwritten history.

(b) "Institution" means the Indigenous Nationalities Upliftment National Institution established pursuant to Section 3.

(c) "Council" means the Governing Council of the Institution formed pursuant to Section 7.

(d) "Committee" means the Executive Committee of the Council formed pursuant to Section 10.

(e) "Prescribed" or "as prescribed" means prescribed or as prescribed in the Rules framed under this Act.

Chapter-2

Establishment, Objectives, Functions, Duties and Powers of the Institution

3. Establishment of the Institution: (1) An institution named "Indigenous Nationalities Upliftment National Institution" is hereby established.

(2) The central office of the Institution shall be located within the Kathmandu Valley, and the Institution may establish its branch offices in other places as required. 4. Institution to be an Autonomous Body: (1) The Institution shall be an autonomous and corporate body with perpetual succession.

(2) The Institution shall have its own separate seal for its business.

(3) The Institution may, like an individual, acquire, use, sell or otherwise dispose of movable and immovable property.

(4) The Institution may, like an individual, sue or be sued in its own name. 5.

6. Functions, Duties and Powers of the Institution: For the attainment of the objectives mentioned in Section 5, the functions, duties and powers of the Institution shall be as follows: -

(a) to formulate and implement or cause to be implemented necessary programs for the promotion and preservation of the languages, scripts, literature, history, arts, culture, traditional skills and technologies of indigenous nationalities,

(b) to study and research the languages, scripts, literature, history, arts, traditions and cultures of indigenous nationalities, and to develop such languages, scripts, history, arts, literature, culture and traditions,

(c) to protect or cause to be protected the technologies, skills and specific knowledge traditionally practiced by indigenous nationalities as the intellectual property rights of the concerned indigenous nationalities, subject to the prevailing law and as prescribed,

(d) to publish the history and literature of indigenous nationalities,

(e) to prepare and publish or cause to be prepared and published dictionaries of the languages of indigenous nationalities with the assistance of other bodies concerned with language and literature,

(f) to establish archives and museums introducing the languages, cultures, history and traditions of indigenous nationalities,

(g) to establish schools to teach the mother tongue of indigenous nationalities at least up to the primary level,

(h) to allow foreign scholars desiring to study or research the languages, culture, history, literature, arts and traditional technologies of indigenous nationalities to study or research in association with the Institution, with the approval of the Government of Nepal,

(i) to collect and manage information relating to indigenous nationalities,

(j) to conduct or cause to be conducted special programs to enhance the economic and social status of poor and backward groups among indigenous nationalities,

(k) to establish relations with foreign or international organizations having similar objectives and exchange assistance,

(l) to provide advisory services relating to indigenous nationalities,

(m) to make arrangements for broadcasting information, news and various programs in the mother tongues of indigenous nationalities,

(n) to prepare a schedule of affluent and poor indigenous nationalities, taking into account the social, economic and cultural disparities, differences and incompatibilities existing among indigenous nationalities,

(o) to do or cause to be done other necessary things relating to indigenous nationalities to fulfill the objectives of the Institution. Chapter-3

Provisions Relating to the Governing Council and Executive Committee

7.

Vice-Chancellor of the Institution or the member designated by him/her ? Member

(g) Member, National Planning Commission (looking after the concerned subject) ? Member

(h) Secretary, Ministry of Local Development ? Member

(i) Secretary, Ministry of Finance ? Member

(j) Secretary, Ministry of Culture, Tourism and Civil Aviation ? Member

(k) Secretary, Ministry of Education and Sports ? Member

(l) Among the organizations of indigenous nationalities listed in the Schedule affiliated with the Federation of Indigenous Nationalities, on the recommendation of the Federation of Indigenous Nationalities, one person from each indigenous nationality, and if there are indigenous nationalities not affiliated with the Federation of Indigenous Nationalities, persons nominated by the Vice-Chairperson so that there is one person from each such indigenous nationality ? Members

(m) Among the women of indigenous nationalities who have contributed to the upliftment of indigenous nationalities, As amended by the Act to Amend Some Nepal Acts to Make Them Consistent with the Constitution of Nepal, 2075. fourteen persons nominated by the Government of Nepal at the rate of two persons from each province ? Members

(n) Two persons nominated by the Government of Nepal from among the businessmen, industrialists and donors within the indigenous nationality community ? Members

(o) Members of the Executive Committee ? Members

(p) A person, among the indigenous nationality persons who have made special contributions to the upliftment of indigenous nationalities, nominated by the Vice-Chairperson of the Council on the recommendation of the Vice-President of the Council ? Member-Secretary

(2) For making recommendations for the nomination of the Vice-President pursuant to clause (c) of sub-section (1), there shall be a Recommendation Committee comprising the Vice-Chairperson of the Council as the Coordinator, and one person each designated by the Federation of Indigenous Nationalities and the Indigenous Nationalities Council.

(3) The term of office of the Vice-President, Members and Member-Secretary nominated pursuant to clauses (c), (l), (m), (n) and (p) of sub-section (1) shall be four years, and they may be nominated once again. Deleted by the Act to Amend Some Nepal Acts to Maintain Gender Equality, 2063.

(4) The Council may, if deemed necessary, invite domestic or foreign experts to participate as observers in the meeting of the Council. 8. Meetings and Decisions of the Council: (1) A meeting of the Council shall be held at least twice a year at the date, time and place specified by the Chairperson of the Council.

(2) The meeting of the Council shall be presided over by the Chairperson of the Council.

In his/her absence, the Vice-Chairperson of the Council shall preside, and if the Vice-Chairperson is also absent, the Vice-President of the Council shall preside over the meeting of the Council. (3) The presence of at least fifty percent of the total members of the Council shall be deemed to constitute a quorum for the meeting. (4) The decision of the majority shall be deemed to be the decision of the Council meeting. In case of a tie, the person presiding may cast a deciding vote. (5) The decisions of the Council meeting shall be certified by the Member-Secretary of the Council. (6) Other procedures relating to the meeting of the Council shall be as determined by the Council itself. 9. Functions, Duties and Powers of the Council: (1) The Council shall perform the functions and exercise the powers that the Institution is required to perform and exercise under this Act. (2) Without prejudice to the generality of sub-section (1), the functions, duties and powers of the Council shall be as follows: - (a) to determine policies for various programs and projects operated by the Institution, (b) to approve the annual and periodic plans of the Institution, (c) to approve the annual budget of the Institution, (d) to evaluate the programs and projects operated by the Institution, (e) to approve the Regulations made by the Institution, (f) to perform other functions as prescribed. 10.

Formation of the Executive Committee: (1) Subject to this Act or the Rules framed under this Act and the general directives of the Council, for the day-to-day operation of the Institution, there shall be an Executive Committee as follows: - (a) Vice-President of the Council ? Chairperson (b) Among the subject experts who have made special study or research on indigenous nationality matters or among indigenous nationality persons who have made significant contributions to the upliftment of indigenous nationalities, two persons including at least one woman, nominated by the Chairperson on the recommendation of the Vice-Chairperson of the Council, from among five persons including at least one woman recommended by a three-member Recommendation Committee constituted by the Council ? Members Provided that the Recommendation Committee shall not recommend the name of any of its own members. (c) An officer of at least the Joint Secretary level of the Ministry of Local Development designated by that Ministry ? Member (d) Member-Secretary of the Council ? Member-Secretary (2) The term of office of the members pursuant to clause (b) of sub-section (1) shall be four years. 11. Meetings and Decisions of the Committee: (1) A meeting of the Committee shall be held as required at the date, time and place specified by the Chairperson of the Committee. (2) The meeting of the Committee shall be presided over by the Chairperson of the Committee, and in his/her absence, the senior-most member among the nominated members present in terms of nomination order shall preside over the meeting. (3) Domestic or foreign experts and persons concerned with the programs and projects of the Institution may be invited to the meeting of the Committee as required. (4) Other procedures relating to the meeting of the Committee shall be as prescribed. 12. Functions, Duties and Powers of the Committee: In addition to the functions mentioned elsewhere in this Act, the functions, duties and powers of the Committee shall be as follows: - (a) to implement or cause to be implemented the decisions of the Council, (b) to prepare the periodic and annual programs, projects and budget of the Institution and submit them to the Council, (c) to manage and operate the Fund of the Institution, (d) to get the accounts of the Institution audited and submit the report thereof to the Council, (e) to prepare drafts of the Regulations to be made by the Institution and submit them to the Council, (f) to perform or cause to be performed other functions as prescribed, subject to the directives given from time to time by the Council to fulfill the objectives of the Institution. 13.

Provision Relating to Terms of Service of the Vice-President of the Council: (1) The Vice-President of the Council shall be the chief executive officer working full-time in the Institution. (2) The remuneration, facilities and other terms of service of the Vice-President of the Council shall be as prescribed. 14. Provision Relating

to Terms of Service of the Member-Secretary of the Council: (1) The Member-Secretary of the Council shall be an executive officer working full-time in the Institution, and he/she shall work under the general directives of the Vice-President. (2) The remuneration, facilities and other terms of service of the Member-Secretary of the Council shall be as prescribed. 15. Power to Form Sub-Committee or Task Force: (1) The Council or the Committee may form a sub-committee or task force as required. (2) The functions, duties, powers, procedures and facilities of the sub-committee or task force formed pursuant to sub-section (1) shall be as specified by the Council or the Committee. Chapter-4 Fund, Accounts and Audit of the Institution 16. Fund of the Institution: (1) The Institution shall have a separate Fund. (2) The Fund mentioned in sub-section (1) shall consist of the following amounts: - (a) Amount received from the Government of Nepal, (b) Loan amount received from any foreign government or international organization, (c) Donation, aid, grant or any other amount received from any foreign government or international organization or person, (d) Amount received as donation or aid from any person or organization, (e) Amount received by the Institution for providing services, (f) Amount received from any other source. (3) The Institution shall obtain the approval of the Government of Nepal for receiving amounts under clause (b) of sub-section (2), and shall give prior notice to the Government of Nepal for receiving amounts under clause (c). (4) All expenses to be borne by the Institution shall be met from the Fund mentioned in sub-section (1). (5) All amounts received by the Institution shall be deposited in a bank account opened in the name of the Institution. (6) Operation of the account of the Fund of the Institution shall be as prescribed. 17. Accounts and Audit: (1) The Institution shall keep accounts of its income and expenditure in accordance with the prevailing law. (2) The audit of the Institution shall be carried out by the Office of the Auditor General. Chapter-5 Miscellaneous 18. Proceedings Not to be Invalid: Notwithstanding anything contained in other sections of this Act, if the place of any member of the Council or the Committee becomes vacant and proceedings are conducted, such proceedings shall not be deemed invalid only for that reason. 19.

Delegation of Powers: (1) The Council may delegate all or some of the powers conferred to it under this Act or the Rules or Regulations framed under this Act to the Committee or the Chairperson of the Committee or the Member-Secretary of the Committee, subject to the conditions specified by the Council. (2) The Committee may delegate all or some of the powers conferred to it under this Act or the Rules framed under this Act to any member of the Committee or the Member-Secretary or any officer or employee. 20. Annual Report to be Submitted: (1) The Institution shall submit an annual report of its activities to the Government of Nepal within three months from the expiry of each fiscal year. (2) The report under sub-section (1) shall, in addition to other matters, include a brief description of the work done by the Institution within one year, the financial position of the Institution, details of expenditure, programs or projects completed and their costs, and the problems faced by the Institution. (3) The Institution shall publish the main parts of the report under sub-section (1). 21. Appointment of Employees of the Institution: (1) The Institution may appoint employees as prescribed. (2) The appointment and terms of service of the employees of the Institution shall be as provided in the Regulations made by the Council. 22. Government of Nepal May Give Directions: The Government of Nepal may give necessary directions to the Institution. 23. Contact with Government of Nepal: The Institution shall maintain contact with the Government of Nepal through the Ministry of Local Development. 24. Power to Make Rules and Regulations: (1) The Council may make necessary Rules for the implementation of the objectives of this Act. (2) Subject to this Act and the Rules framed under this Act, the Council may make Regulations on the following matters, and such Regulations shall come into force after approval by the Government of Nepal: - (a) Internal operation, (b) Appointment and terms of service of employees, (c) Financial administration. 25. Power to Amend the Schedule: The Government of Nepal may, on the recommendation of the Council, by notification published in the Nepal Gazette, amend or alter the

Schedule. 26.

Repeal and Saving: (1) The National Janajati Development Committee (Formation) Order, 2054 is hereby repealed, and all movable and immovable property, rights and liabilities of the National Janajati Development Committee formed under that Formation Order shall vest in the Institution. (2) Contracts, leases and agreements entered into by the National Janajati Development Committee formed under the Formation Order mentioned in sub-section (1) shall be deemed to have been entered into with the Institution, and all acts and proceedings performed by that Committee shall be deemed to have been performed by the Institution.

Schedule Relating to clause (a) of Section 2

1. Kisan
2. Kumal
3. Kushwadiya
4. Kusunda
5. Gangai
6. Gurung
7. Chepang
8. Chhantyal
9. Chhaiton
10. Jirel
11. Jhangad
12. Dolpo
13. Tangbe
14. Tajpuriya
15. Tamang
16. Tin Gaunle
17. Thakali
18. Topkegola
19. Thakali
20. Thami
21. Tharu
22. Thudam
23. Danuwar
24. Darai
25. Dura
26. Dhanuk (Rajbanshi)
27. Dhimal
28. Newar
29. Pahari
30. Phree
31. Bankariya
32. Baramo
33. Bahra Gaunle
34. Bote
35. Bhujel
36. Bhote
37. Magar
38. Majhi
39. Marphali Thakali
40. Mugali
41. Meche (Bodo)
42. Yakha
43. Rai
44. Raute
45. Rajbanshi (Koch)
46. Rajhi
47. Larke
48. Limbu
49. Lepcha
50. Lhopa
51. Lhomi (Shingsawa)
52. Walung
53. Byasi
54. Sherpa
55. Satar (Santhal)
56. Siyar
57. Sunuwar
58. Surel
59. Hayu
60. Hyolmo

Rana Tharu Added by notification published in Nepal Gazette dated 2077/02/05.